

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TYRONE ETHENS FULLER JR.,

Petitioner

VS.

DARIEN TYLER ROBINSON,

Respondent

) Case Number: FPT-24-378499

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom at 9AM. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Tyrone Ethens Fuller, Jr. (Father) and Darien Tyler Robinson (Mother) have two minor children together, Courtlyn (DOB 8/18/2020, age 5), and Cashous (DOB 3/23/2022, age 4). On 1/31/2025, the Court entered judgment and awarded sole legal and physical custody of the children to Father.
- 2) On 8/12/2025, Mother filed a request for new custody orders and to set aside the 1/31/2025 judgment for lack of service. Father filed a response stating he was concerned about the children's safety while in Mother's care; he stated, among other things, that Mother was soliciting prostitution and sneaking men into her home. Father stated he had been the primary parent since May 2024 and that before March 2025, Mother saw the children once a month, often did not show up to scheduled visits, and was inconsistent with phone and video calls. Father requested

1 sole legal and physical custody with alternating weekends and holidays and daily video calls
2 for Mother.

- 3 3) On 10/13/2025, a Stipulation and Order was filed. The parties agreed that Mother shall have the
4 first, third, and fourth weekends of the month from Friday at 3PM to Sunday at 6PM and
5 Thanksgiving and Christmas in odd years. The parties also agreed that each party may have up to
6 10 vacation days (within the state only) per year with the children, with 30 days' notice to the
7 other party.
- 8 4) On 11/6/2025, the Court awarded Father sole legal custody with parenting time for
9 Mother pursuant to the 10/13/2025 Stipulation and Order.
- 10 5) On for hearing is Father's 4/10/2026 request seeking primary physical custody and for all
11 communication between the parties to be through Our Family Wizard or Talking Parents, and to
12 be limited to discussions about the children only. Father requests additional orders relating to
13 safe transportation for the children, the children's cleanliness and hygiene, and therapy for the
14 children.
- 15 6) On 5/4/2026, Father filed a supplemental declaration in which he states (and provides exhibits to
16 show) that one of the men Mother brought to her home and around the children is a registered sex
17 offender and that another man has been determined to be "violent and dangerous" by the San
18 Francisco District Attorney's Office. Father asks that Mother's parenting time be decreased from
19 three weekends per month to two weekends per month.
- 20 7) On 7/10/2026, Mother filed a response in which she states she "would like to continue with the
21 custody and visitation we already currently have." She states the children have become
22 accustomed to, and are happy with, the current schedule. She states that since the last court
23 hearing, she has completed a certification and have a job offer for a job that starts at the end of
24 this month. She states she has saved money and will soon have her own place.

25 **B. Findings and Orders**

- 26 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
27 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
28 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
29 children is the United States.

2) **The parties are ordered to appear at 9AM on 7/16/2026 in Department 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ROBERT HINES,

Petitioner

VS.

CHERI GATEWOOD JOHNSON,

Respondent

) Case Number: FMS-25-387613

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
AND MOVE AWAY WITH MINOR CHILDREN

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom at 10AM. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Robert Hines (Father) and Respondent Cheri Gatewood Johnson have three minor children together, Edward (DOB 5/29/13, age 13), Everett (DOB 6/6/2016, age 10), and Elizabeth (DOB 8/1/2018, age 7).
- 2) Pursuant to an 8/24/2022 Divorce Decree from the Circuit Court of Pulaski County, Arkansas—which was registered in this Court on 12/9/2025—the parties “share joint legal custody of the minor children with Mother having primary physical custody. The parties shall discuss all major parenting decisions together; however, in the event they are unable to reach an agreement then Mother shall have the final say.” The Divorce Decree further provides that Father’s parenting time shall be every other Friday after school to Sunday at 5PM (or until Tuesday school drop off

1 if Monday is a school holiday), every Thursday after school to Friday morning drop off, “[a]ll
2 other times by agreement,” and certain holidays.

- 3 3) On for hearing is Father’s request filed 3/27/2026 in which he seeks joint legal custody, “primary
4 physical custody,” and an order allowing him to move to Arkansas with the children. He asserts
5 his actual timeshare has been significantly greater than what is set forth in the Arkansas Divorce
6 Decree. Father has filed a memorandum of points and authorities in which he asserts that the
7 children’s best interests and the LaMusga factors (*In re Marriage of LaMusga* (2004) 32 Cal.4th
8 1072) weigh in favor of relocation for the children.
- 9 4) On 7/2/2026, Mother filed a response, two declarations, and a memorandum of points and
10 authorities in opposition to Father’s request. She states that Father’s assertion of his parenting
11 time is unsupported and that the move would uproot the children who have lived in San Francisco
12 for 5 years and prevent them from being near their mother, stepfather, and their twin 5-month-old
13 siblings. Mother asserts the sibling relationship must be considered and that the LaMusga factors
14 weigh against relocation for the children. Mother states that the Arkansas court previously denied
15 Father’s request for a change in custody and his request to move to Arkansas with the children.
- 16 5) On 7/9/2026, Father filed a reply seeking an order granting his move-away request before the
17 start of the 2026-2027 school year or, in the alternative, a 3-4-4-3 parenting time schedule.
18 Father disagrees that he has less parenting time than Mother. He states that his prior move-away
19 request was not denied on the merits; he attaches a 12/20/2024 Pulaski County Order that shows
20 the Arkansas court transferred the case to California after finding that neither party nor the
21 children had lived in Arkansas for approximately 3.5 years, and ordered that Father may pursue
22 his requests in the California court.

23 **B. Findings and Orders**

- 24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
25 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
26 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 children is the United States.
- 28 2) **The parties are ordered to appear at 10AM on 7/16/2026 in Department 404.**
- 29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAW PAVANA TAN,	)	Case Number: FDI-16-785321
Petitioner	)	Hearing Date: July 16, 2026
VS.	)	Hearing Time: 9:00 AM
MICHAEL CHIN LEONG TAN,	)	Department: 404
Respondent	)	Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Per agreement of the parties, the hearing in this matter is vacated.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANATOLIY KATS,

Petitioner

VS.

OLENA KATS,

Respondent

) Case Number: FDI-18-790475

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anatoliy Kats (Husband) and Respondent Olena Kats (Wife). The parties married on 10/5/2009 and they agree their date of separation is 5/1/2017, for a marriage of 7 years and 7 months.
- 2) On 7/13/2020, a Judgment was entered pursuant to an agreement of the parties. The Judgment provides in pertinent part that:
 - a. The parties shall retain the services of Moon Schwartz and Madden (MSM) to prepare QDRO's for any community property interest in "retirements" including Dignity 403(b), Sutter 403(b), and Sutter 401(k) with each party equally responsible for the payment and services provided.
 - b. Husband shall retain "the Roth IRA" in his name as his sole and separate property.
- 3) On 9/24/25, Wife filed a Request for Order. Wife states that after finally agreeing to cooperate with hiring Moon Schwartz and Madden (MSM) to divide their retirement accounts, MSM discovered transfers of funds into Husband's Sutter 403(b) and 401(k) retirement accounts on

12/31/2016. Wife contends the transfers are community funds, while Husband contends they are separate funds. Wife attached a communication from MSM in which MSM stated it needs a court's decision on the character of the "rollovers into Sutter 401(k) and 403(b)... to complete those calculations and QDROs." Wife asks the Court to divide the retirement and investment accounts, award sanctions for Husband's delay for hiring MSM and for concealing community property transfers, and an award of interest and equitable adjustment for five years of delay.

4) On 11/3/25, Husband filed a Responsive Declaration denying allegations of concealment, delay, and non-compliance with the terms of the Judgment. Husband states he initiated the QDRO process on 4/1/2024 and asserts that the transfer of funds on 12/31/2016 was an administrative rollover/transfer that occurred prior to Judgment. Husband requests the Court deny the Wife's 9/24/25 Request for Order in its entirety and impose sanctions against Wife under Family Code section 271.

5) On 11/5/25, Husband filed an "Executive Summary for Judicial Review of Petitioner's Responsive Declaration."

6) On 11/14/25, Wife filed a declaration entitled "Responsive Declaration" that the Court considers a Reply Declaration wherein she reiterates her position.

7) At the prior 11/20/2025 hearing, per the Findings and Order After Hearing filed 12/5/2025, the Court made the following relevant orders:

a. A future hearing date was set for 1/13/2026 on the issue of the retirement accounts. The Court ordered Husband no later than 12/30/2025 to file and serve a declaration attaching quarterly statements for all accounts from which money was transferred into the Sutter 403(b) and 401(k) accounts from the date of marriage (10/5/2009) through the date of separation (5/1/2017).

b. The Court reserved jurisdiction over both parties' requests for sanctions.

8) On 12/12/2025, Wife filed a Request for Clarification of Findings and Order After Hearing. Wife requests that the Court order Husband to provide all quarterly statements from all accounts to which outgoing transfers were made from the Sutter 403(b) and Sutter 401(k) accounts.

9) On 12/24/2025, Husband filed a Declaration wherein he states:

- a. He has reviewed the complete financial history of the Lincoln Financial retirement accounts from date of marriage through “the date of the administrative transfer to Fidelity (December 31, 2016) and these quarterly statements confirm there were zero employee or employer contributions made to these accounts during the entire marital period.
- b. The Accounts were established prior to marriage and funded entirely with premarital earnings.
- c. The total balance transferred to Fidelity on 12/31/2016 (\$159,313.45) represents Husband’s separate property consisting of pre-marital balance plus passive market growth.

10) On 1/5/2025, Wife filed a Reply Declaration. Wife requests an independent forensic accounting review the retirement and investment accounts at issue, with Husband bearing 100% of the costs. Wife asks the Court to authorize MSM to directly obtain certified statements and records from any and all plan administrators, custodians, or financial institutions for any retirement, investment, or related accounts held in Husband’s name, or from which funds were transferred, rolled over, or otherwise moved, for the period from the opening of each account through the present, without further authorization from Husband. In the alternative, Wife asks the Court to order Husband to obtain and produced certified statements directly from the relevant plan administrators for all such accounts and periods.

11) On 1/7/2026, Husband filed a Supplemental Declaration. Husband asks the Court to deny all relief requested in Wife’s Reply Declaration.

12) At the prior 1/13/2026 hearing, per the Findings and Order After Hearing filed 1/20/2026, the Court made the following relevant orders:

- a. No later than 1/16/2026, Husband shall forward to Moon Schwartz and Madden (MSM) a true and correct electronic copy of his Declaration filed 12/24/2025 (including all attachments) and his Supplemental Declaration filed 1/7/2025 (including all attachments). Wife shall be CC’d on that communication with MSM. Husband shall ensure Wife receives a copy of all the documents he sends to MSM.
- b. The Court orders the parties to have MSM review the documents attached to Husband’s Declaration filed 12/24/2025 and his Supplemental Declaration filed 1/7/2025 and

1 determine whether there are any additional documents they need to complete a tracing
2 and form an opinion regarding Husband's claims that all funds rolled over into the
3 community property retirement accounts from the Lincoln Financial accounts in
4 December 2016 are entirely Husband's separate property. Husband shall email (or
5 provide a Dropbox or similar link) to MSM any additional documents requested (with a
6 CC to Wife) within 14 days of receiving a list of additionally needed documents from
7 MSM.

8 c. Once MSM is satisfied that it has all of the documents it needs or that can be reasonably
9 obtained, the Court orders the parties to have MSM review the documents and provide a
10 written opinion regarding Husband's claim that all funds transferred into the community
11 property retirement accounts from the Lincoln Financial accounts are his separate
12 property.

13 d. The parties shall share equally the cost for MSM to complete the work described above.

14 e. Once MSM has produced an opinion on this issue, the parties are ordered to meet and
15 confer to determine whether they intend to accept the opinion and have MSM complete
16 the QDROs for the remaining accounts or whether they intend to contest the opinion.

17 f. A review hearing is set for Thursday, 3/26/2026 at 9:00 AM in Dept. 404. In the event the
18 parties do not accept MSM's opinion, the following issues will be heard at the next
19 hearing date: (a) review any opinion by MSM regarding the character of any rollovers
20 from the Lincoln Financial accounts into the community property retirement accounts
21 and (b) adjudicate any remaining dispute between the parties regarding this issue.

22 g. All other requests set forth in Wife's 1/5/2025 Reply Declaration were denied.

23 13) On 3/13/2026, Husband filed a Declaration to which he attached a report by MSM dated
24 1/29/2026 which includes findings regarding the community and separate property shares
25 contained in Husband's Sutter Health 403(b) and 401(k) and Dignity Health 403(b). Husband
26 asks the Court to adopt MSM's findings and order the parties to immediately cooperate with
27 MSM for the preparation of QDROs.

28 14) On 3/13/2026, Wife filed a Declaration. Wife states that: MSM issued two materially different
29 reports within 24 hours, reducing the community component of the Sutter Health 403(b) by

1 approximately \$44,000 without adequate explanation, the report acknowledges rollover
2 mismatches and relies on figures labeled “assumed” rather than verified tracing, the report does
3 not reconcile administrator-produced Fidelity records, and the report contains two math errors
4 (one in the amount of \$4.90 and another in the amount of \$667.43). Wife states that these issues
5 undermine confidence in MSM’s analysis. Wife also states that she subpoenaed records from
6 Fidelity and provided them to MSM but it is unknown whether MSM relied on those records.
7 Wife further notes that MSM wrote to both parties stating, “At this time we recommend a
8 forensic CPA as we are unable to provide further analysis.” Wife asks the Court to:

- 9 a. Decline to adopt the MSM report;
- 10 b. Direct MSM to provide a written supplemental reconciliation confirming that all
11 reasonably obtainable documentation necessary to complete tracing has been obtained
12 and reviewed;
- 13 c. Require reconciliation of the rollover discrepancies against the Fidelity records;
- 14 d. Confirm that the separation-date allocation percentages are supported by a complete and
15 internally consistent tracing analysis;
- 16 e. If MSM is unable to provide such reconciliation, appoint a neutral forensic CPA to
17 perform a complete tracing of the Lincoln (CPMC), Sutter Health 403(b) and 401(k),
18 Fidelity, and Dignity Health retirement accounts; and
- 19 f. Direct the parties, or the relevant plan administrators, to produce updated retirement
20 account statements through the most recent available date so that separation-date
21 allocation percentages may be accurately applied to current balances and each party may
22 receive the full community property share of retirement benefits.

23 15) Following the prior 3/26/2026 hearing, the Court issued a Findings and Order After Hearing
24 (filed 4/17/2026) which ordered the following:

- 25 a. Because Wife is contesting MSM’s report, this hearing is continued to Thursday,
26 7/16/2026 at 9:00 AM in Dept. 404 to provide time to Wife to hire an independent
27 forensic accountant if she so chooses to review the necessary documents and comment on
28 MSM’s report final report. Wife shall be 100% responsible for the fees of her
29 independent forensic accountant subject to later reallocation.

- 1 b. No later than 5/1/2026, Wife may provide Husband a list of documents that she has not
2 yet been provided with to date, and Husband shall use his best efforts to provide the
3 requested documents to Wife within 10 days of Wife's request. Husband is not required
4 to provide to Wife any documents he has previously already given to Wife.
- 5 c. If Wife wishes to subpoena documents directly from the financial institutions, she may do
6 so.
- 7 d. At least 20 calendar days prior to the next hearing date, Wife shall provide Husband a
8 copy of her expert's report, if any.
- 9 e. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
10 declarations explaining which report the Court should adopt and why, and whether the
11 Court should reallocate the cost of Wife's forensic accountant.
- 12 f. At least 10 calendar days prior to the next hearing date, both parties shall also file and
13 serve Income and Expense Declarations.

14 16) On 5/1/2026, attorney Irina Aerov filed a Noticed of Limited Scope Representation stating that
15 she will represent Wife at the 7/16/2026 and for any continuance of that hearing. Ms. Aerov is
16 also representing Wife with respect to the issue of discovery.

17 17) On 7/6/2026, Husband filed a declaration stating that Wife failed to file an expert report and that
18 Wife should be precluded from introducing any new expert testimony of forensic accountant.
19 Husband also asks the Court to deny any request by Wife to reallocate any fees for Wife's
20 forensic accountant. Husband asks the Court to adopt Moon Schwartz and Madden's report.
21 However, Husband also asks that the Court stay the preparation and entry of any Qualified
22 Domestic Relations Orders regarding Wife's community share of retirement accounts "pending
23 the adjudication of any potential omitted community funds used to acquire foreign assets."
24 Husband states he believes Wife acquired a multi-property real estate portfolio in Kyiv and
25 Ivano-Frankivsk between 2021 and 2024 (following marriage) and he wants to conduct discovery
26 to determine whether Wife used community funds to acquire that real estate. Husband further
27 states that Wife served a formal Demand for Production on 6/18/2026 which is "currently
28 pending."
29

1 18) On 7/6/2026, Wife filed a declaration asking the Court to continue the 7/16/2026 hearing to date
2 in late September 2026 or early October 2026. Wife states she was unable to find a forensic
3 accountant willing to work with her as a self-represented litigant and she had to retain legal
4 counsel to assist her. Wife states her attorney contacted several forensic accountants, but only
5 one, Jeff Stegner, was available to review the documents. Wife states Mr. Stegner is currently
6 reviewing he records and is working on identifying what additional documents Husband “is
7 required to produce or what documents must otherwise be obtained through subpoenas.”

8 19) On 7/7/2026, Husband filed a Supplemental Declaration stating he objects to Wife’s request for
9 continuance. Husband reiterates his requests set forth in his 7/6/2026 declaration, including his
10 request to “stay the execution and distribution of any Qualified Domestic Relations Orders
11 (QDROs) pending the adjudication of Respondent’s omitted foreign assets, as more fully set forth
12 in Petitioner’s July 6, 2026 Declaration.”

13 **B. Findings and Order**

- 14 1) The Court finds good cause to grant Wife’s request for a continuance of this hearing to **Tuesday,**
15 **10/13/2026 at 9:00 AM in Dept. 404** to permit her expert additional time to conduct his analysis.
- 16 2) Wife shall serve whatever subpoenas she determines needs to be served to obtain whatever
17 documents her expert believes needs to be obtained sufficiently far in advance of the next hearing
18 date to provide the third parties with sufficient time to produce the requested documents and to
19 provide time to her expert to review the documents and produce a report.
- 20 3) At least 20 calendar days prior to the next hearing date, Wife shall provide Husband a copy of her
21 expert’s report, if any.
- 22 4) At least 10 calendar days prior to the next hearing date, both parties shall file and serve
23 declarations explaining which report the Court should adopt and why, and whether the Court
24 should reallocate the cost of Wife’s forensic accountant. Wife’s declaration shall also address
25 Husband’s contentions regarding whether she used community funds to acquire foreign real
26 estate, and whether the execution of any QDROs should be delayed for Husband to conduct
27 discovery regarding this issue.
- 28 5) At least 10 calendar days prior to the next hearing date, both parties shall also file and serve
29 Income and Expense Declarations.

6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAGDA RODRIGUES,

Petitioner

VS.

ROBERT MONTERO DEOLIVEIRA,

Respondent

) Case Number: FDI-20-793903

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom. Both parties shall bring to the hearing fully completed Income and Expense Declarations.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

1) Petitioner Magda Rodrigues (Wife) and Respondent Robert Deoliveiro (Husband) married on 8/29/1998 and separated in February 2019, for a marriage of 20 years and 5 months. The parties have no minor children. Wife is represented by attorney Michelle Harris. Husband is self-represented.

2) On 10/31/2022, a Stipulated Judgment was entered which provides in relevant part:

- a. "The current spousal support order filed April 12th, 2021 shall remain in full force and effect until June 1st, 2027, meaning five years from June 1st, 2022 to capture Robert's wages and salary \$4,720 per month, i.e. the Dissomaster listed as Exhibit B to said FOAH. To capture the bonus support from the period of separation through June 1st, 2027, commissions and RSUs, or any other outside consulting work, the parties agree to a

1 lump sum buy-out proposal of \$126,297.27 for that amount. On June 1st, 2027, spousal
2 support shall then drop to zero but the court retains jurisdiction with Magda having the
3 burden to show need and the ability to pay... Spousal support is modifiable upon a
4 showing that his income from all sources has decreased involuntarily and has decreased
5 to \$160,000 or below. Spousal support shall terminate on the death of either party or
6 MAGDA's remarriage."

7 3) The support order filed 4/12/2021 is based on Husband's earning \$14,560 per month in wages
8 and salary and \$4,166 per month in other taxable income, and Wife's earning \$2,665 in other
9 taxable income.

10 4) On 11/14/2025, Husband filed a Request for Order seeking to modify spousal support to \$0
11 effective 11/24/2025 due to involuntary termination from employment effective 11/24/2025.

12 5) At the prior 1/29/2026 hearing, pursuant to an agreement of the parties, the Court ordered the
13 following:

- 14 a. Spousal support was set to \$0 effective 12/1/2025.
- 15 b. The Court's jurisdiction was reserved to modify spousal support retroactive to the date
16 Husband obtains employment.
- 17 c. Husband was ordered to keep Wife's counsel informed of any new employment.
- 18 d. A review hearing was set for 4/23/2026 (which was later continued by agreement of the
19 parties to 7/14/2026).
- 20 e. Wife's attorney was ordered to prepare the Findings and Order After Hearing.

21 6) On 7/14/2026, Wife's attorney filed a declaration stating: "Respondent recently obtained work.
22 Unfortunately, we have not had time to meet and confer to discuss the new support amount.
23 Accordingly, the undersigned requests that the Court order appearances, pass the matter, and
24 Petitioner's counsel will 'meet and confer' with Respondent, in pro per, during the morning."

25 7) Other than the 7/14/2026 pleadings mentioned above, there have been no pleadings filed in this
26 case since the prior 1/29/2026 hearing date.

27 **B. Findings and Order**

28 1) **The parties are ordered to appear. Both parties shall bring to the hearing fully completed**
29 **Income and Expense Declarations.**

2) Petitioner's attorney is admonished to prepare and submit the Findings and Order After Hearing for the 1/29/2026 hearing date, as she was previously ordered to prepare.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMANDA LORRAINE FULFORD,	)	Case Number: FDI-22-797070
Petitioner	)	Hearing Date: July 16, 2026
VS.	)	Hearing Time: 9:00 AM
DAVID ERNESTO SALGUERO,	)	Department: 404
Respondent	)	Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Amanda Fulford (Mother) and Respondent David Salguero (Father). The parties married on 5/4/2020 and they agree their date of separation is 9/30/2022, for a marriage of 2 years and 5 months. The parties have one minor child, Gabriel (DOB: 11/30/2020, age 5). Both parties are currently self-represented.
- 2) On 11/20/2025, following a three-afternoon trial in September 2025, Judge Costin issued a Final Statement of Decision. Among other orders made, the Final Statement of Decision includes a denial of Mother’s request to renew the one-year Domestic Violence Restraining Order issued on 10/8/2024. The Final Statement of Decision also requires Father to pay Mother \$1,039 in guideline monthly child support effective 1/1/2026. The child support calculation is based on Father’s having a 50% timeshare, Father’s average monthly income of \$14,533, and Mother’s average monthly income of \$2,001. The Statement of Decision further requires Father to pay Mother \$3,000 per month between October 2025 through June 2028 to satisfy a total balance of \$63,078.69 owed for child support arrears, attorney’s fees, and an equalization payment. The

1 Court notes that the fee award stated in the Statement of Decision was not a new fee award; it was
2 a finding that Father still owed \$72,295.40 for a fee award made on 1/14/2025.

3 3) On 1/20/2026, Father filed an appeal of Judge Costin's 11/20/2025 Final Statement of Decision.
4 Father's appeal currently remains pending.

5 4) At the prior 3/10/2026 hearing (per the Findings and Order After Hearing filed 4/1/2026), the
6 Court adjudicated Father's Request for Order filed 12/10/2025 wherein Father states he was
7 involuntarily laid off on 11/3/2025 and he has no income, savings, or access to credit. The Court
8 set child support to \$0 effective 12/10/2025, after finding that both parties earn minimal income
9 and cannot afford to pay any amount to the other party. The Court also suspended pending further
10 Court order the requirement that Father pay \$3,000 per month towards amounts owed to Mother
11 for child support arrears, attorney's fees, and an equalization payment. The Court further ordered
12 Father to seek work effective immediately. A review hearing was set for July 2026.

13 5) The Court notes that the Tentative Ruling that was issued prior to the 3/10/2026 hearing date
14 (which was adopted as an order of the Court without objection by either party) contained a future
15 review hearing date of 7/26/2026. However, the date that was actually calendared was 7/16/2026.
16 In the parties most recently filed declarations, both parties cite a review hearing date of
17 7/16/2026, so it appears both parties understand that the review hearing is set for 7/16/2026.

18 6) On 7/6/2026, Mother filed an Income and Expense Declaration wherein she states she began a
19 position as a Camp Recreation Specialist on 4/18/2026. Mother states she works 40 hours per
20 week and earns \$30 per hour.

21 7) Attached to Mother's 7/6/2026 Income and Expense Declaration is a declaration by Mother
22 wherein she requests that the Court reinstate child support at an appropriate amount consistent
23 with the evidence before the Court. Mother states that although she is currently employed, she
24 struggles to meet her financial obligations. Mother states she has had to repeatedly borrow money
25 from family members.

26 8) On 7/13/2026, Father filed an Income and Expense Declaration (showing \$0 in income) as well as
27 a Declaration and Memorandum of Points and Authorities wherein Father asks the Court to
28 maintain the current orders and decline to impute income to Father. Father states that since
29 3/10/2026, Mother has become employed full-time, working 40 hours per week, and she also

1 graduated and earned her bachelor's degree. Father states, "Since March 10, 2026, I have applied
2 to over 101 roles and interviewed for multiple opportunities. I have been subjected to intensive
3 take-home test assignments, timed live 'coding challenges' and multiple interview rounds. I have
4 advanced in the interview process. I have obtained second and third rounds, completed a
5 substantial take-home test, and advanced through executive interviews... I am in consideration
6 for multiple opportunities. However, I have not yet received an offer of employment. In
7 compliance with court seek-job order, I have dutifully devoted at least 25 hours a week on my job
8 search. I also timely served upon Petitioner every month my job search log...I have performed
9 these efforts while responsibly fulfilling my 50% physical custody role as a father... As delineated
10 in my March 6, 2026 filing, starting in December 2025, I received \$450 per week in
11 unemployment benefits. Those benefits ended the week of 5/31/26 and totaled \$11,700 gross. I
12 also received a one-time net severance payment of \$10,476.23 from my previous employer in
13 February 2026. These funds were used for rent, food, transportation, and Gabriel's needs. My rent
14 is \$2,400 per month. The rent alone exceeded my monthly unemployment benefit (\$1,950).
15 Family members and friends have provided me with occasional one-off emergency loan
16 assistance for rent and food. Those loans are not recurring or sustainable. My updated July 2026
17 FL-150 documents more than \$258,804.69 in debt liabilities, no meaningful savings, and no
18 available revolving credit... Without substantial evidence of both ability and opportunity, earning
19 capacity is absent and imputation is legally improper. Petitioner identifies no available position,
20 no employer willing to hire Father, no vocational evaluation, no labor-market survey, and no
21 evidence of prevailing compensation for an available position matching Father's current
22 qualifications. Petitioner instead relies exclusively upon Father's former \$14,533 monthly salary
23 that ended involuntarily on November 3, 2025. Historical earnings may demonstrate work
24 experience; they do not establish a present opportunity at the same income."

25 **B. Findings and Order**

- 26 1) The Court does not find good cause to impute income to Father at this time.
 - 27 2) The Court will maintain the current orders.
 - 28 3) Child support shall remain set at \$0.
- 29

1 4) The requirement that Father pay \$3,000 per month towards amounts owed to Mother for child
2 support arrears, attorney's fees, and an equalization payment continues to be suspended pending
3 further order of the Court.

4 5) The seek work order for Father remains in full force and effect.

5 6) A review hearing is set for **Thursday, 10/15/2026 at 9:00 AM in Dept. 404.**

6 7) At least 20 calendar days prior to the next hearing date, Father shall file and serve an Income and
7 Expense Declaration and a declaration (not to exceed 5 pages in length, not including exhibits)
8 explaining his job search efforts, how he has been meeting his monthly expenses to date, and
9 whether he should be imputed with income.

10 8) At least 10 calendar days prior to the next hearing date, Mother shall file and serve an Income and
11 Expense Declaration and a declaration (not to exceed 5 pages in length, not including exhibits)
12 explaining what orders related to child support she would like the Court to make, how she has
13 been meeting her monthly expenses to date, and whether the Court should impute Father with
14 income and, if so, what amount and why.

15 9) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,	)	Case Number: FDI-24-799969
Petitioner	)	Hearing Date: July 16, 2026
VS.	)	Hearing Time: 9:00 AM
CAITLIN MONTGOMERY,	)	Department: 404
Respondent	)	Presiding: AI MORI

CHILD SUPPORT ISSUE(S); REVIEW OF CUSTODY AND VISITATION

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom at 11AM. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YONATHAN ARARSO,	)	Case Number: FDI-24-800717
Petitioner	)	Hearing Date: July 16, 2026
VS.	)	Hearing Time: 9:00 AM
YANIT MEGBEYANEH,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATION AND TERMINATION OF STATUS
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yonathan Ararso and Respondent Yanit Megbeyaneh married on 1/16/2015 and separated on 7/1/2021, for a marriage of 6 years and 6 months. The parties have two minor children, Mattios (DOB: 7/31/2016, age 9) and Caleb (DOB: 1/27/2018, age 8).
- 2) On 8/15/2025, the parties submitted a proposed stipulated Status-Only Judgment for the Court’s review. The proposed Status-Only Judgment contains the following language: Paragraph 4(f): “Prior to entry of judgment terminating status, both of the following shall occur: i) The Petitioner’s retirement or pension plan shall be joined as a party to the proceeding; and ii) if applicable, an order pursuant to Section 2610 shall be entered with reference to the defined benefit or similar plan pending the ultimate resolution of the distribution of benefits under the employee benefit plan.”
- 3) On 12/30/2025, the proposed Status-Only Judgment was rejected because no retirement plans had been joined to this proceeding (as referenced in Paragraph 4(f) of the proposed Status-Only Judgment).

- 4) On 1/29/2026, the parties submitted an FL-372 form regarding the joinder of a University of California Defined Contribution Plan (UC DCP).
- 5) On 2/11/2026, the Court requested additional pleadings necessary to join UC DCP as a party to the proceeding.
- 6) On 4/22/2026, a Stipulation and Order was entered which memorializes the parties' agreements for the parties to file an amended Petition and an amended Response.
- 7) No additional pleadings were filed or submitted following the Court's 2/11/2026 letter requesting additional pleadings for joinder and the 4/22/2026 Stipulation and Order.
- 8) Now on for hearing is Petitioner's Request for Order filed 5/15/2026 asking the Court to bifurcate and terminate marital status. Petitioner writes, "I no longer wish to be married to Respondent... I urge the court to grant my Request for Order." In the FL-315 form attached to Petitioner's Request for Order, under the prompt "All pension or retirement plans in which the community has an interest are listed below or on attachment 1e(2)," Petitioner states: "None subject to joinder per FL-318-INFO."
- 9) There is no Proof of Service on file demonstrating service of Petitioner's 5/15/2026 Request for Order, nor did Respondent file a Responsive Declaration.

B. Findings and Order

- 1) The hearing on Petitioner's Request for Order filed 5/15/2026 is hereby continued to DATE at 9:00 AM in Dept. 404.
- 2) If there is a community property interest in a University of California Defined Contribution Plan (UC DCP), the plan must be joined as a party to this proceeding before the Court may bifurcate and terminate marital status under Family Code section 2337(d)(1). As a governmental plan, UC DCP is not subject to ERISA's anti-joinder provisions.
- 3) The Court also needs additional information from Petitioner whether there is a community interest in a corresponding University of California Retirement Plan (UCRP).
- 4) No later than DATE, Petitioner shall file and serve a declaration which explains his position regarding whether the community has any interest in a UC DCP or UCRP retirement plan. Petitioner shall provide the dates of employment that either he or Respondent worked for the UC system and contributed to the UC DCP and / or UCRP retirement plans.

- 1 5) If Petitioner contends there is a community interest in a UC DCP or UCRP retirement plan, no
2 later than DATE, Petitioner shall file and serve all pleadings necessary for the UC DCP and
3 UCRP retirement plans to be joined as a party to this proceeding per Family Code section
4 2337(d)(1).
- 5 6) By the deadlines set forth in the Code of Civil Procedure, Petitioner must have the following
6 pleadings served on Respondent by a third-party age 18 or older:
 - 7 a. Petitioner's Request for Order filed 5/15/2026
 - 8 b. Petitioner's declaration regarding whether the community has an interest in a UC DCP or
9 UCRP retirement plan
 - 10 c. Blank Responsive Declaration
 - 11 d. Blank FL-315 form
 - 12 e. Tentative Ruling Instructions
- 13 7) Pleadings for joinder of the UC DCP and UCRP retirement plans
- 14 8) Findings and Order After Hearing for the 7/16/2026 hearing date (which will be mailed to
15 Petitioner)
- 16 9) Petitioner must file a Proof of Service evidencing compliance with the orders above at least 5
17 calendar days prior to the next hearing date.
- 18 10) Petitioner is strongly encouraged to contact the ACCESS Center for assistance. Information for
19 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
20 center.
- 21 11) The Court will prepare the Findings and Order After Hearing.